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AS AMENDED

BILL NO. 2118

and

Woods of the Senate

[militia - Oklahoma Military Department - Adjutant
General - compensation - authority - donations -
federal programs - court-martial - offenses - use of
marijuana - domestic violence - Oklahoma National
Guard - tuition assistance - application - repayment
- promulgation of rules and regulations - fund -
expenditures - repealer - codification - effective
date]

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 44 O.S. 2021, Section 21, is amended to read as follows:

Section 21. The Military Department of the State of Oklahoma is hereby established and shall be under the command and control of the Governor as Commander in Chief, with the Adjutant General as the executive and administrative head thereof. The Military Department shall be constituted of the state military forces, as defined by Section 801 of this title, and is hereby organized into a joint headquarters which shall be identified as the joint forces headquarters. The joint forces headquarters shall be jointly

1 | staffed by Army National Guard and Air National Guard personnel who,
2 | under the authority and direction of the Adjutant General, shall
3 | support and assist the Adjutant General in the exercise of command
4 | and control over state military forces when not activated for
5 | federal duty under Title 10 of the United States Code. There shall
6 | be assigned to the joint ~~force~~ forces headquarters, officers,
7 | enlisted personnel, and civilian employees as may be considered
8 | necessary by the Governor as Commander in Chief and ~~as may be~~
9 | ~~authorized by law and Army National Guard regulations and Air~~
10 | ~~National Guard regulations~~ the Adjutant General.

11 | SECTION 2. AMENDATORY 44 O.S. 2021, Section 24, is
12 | amended to read as follows:

13 | Section 24. A. The Adjutant General shall be appointed by the
14 | Governor, by and with the advice and consent of the Oklahoma State
15 | Senate, and shall serve at the pleasure of the Governor.

16 | B. To be eligible to hold the office of Adjutant General of
17 | this state, at the time of appointment, the appointee:

18 | 1. Shall be a federally recognized and currently serving as a
19 | colonel or higher ranking officer of the Oklahoma National Guard ~~and~~
20 | ~~of the National Guard of the United States for no less than three~~
21 | ~~(3)~~ eight (8) years of service in the Oklahoma National Guard;

22 | 2. Shall possess at least the rank of Colonel; and
23 |
24 |

1 3. If not already a general officer, shall be eligible for a
2 Certificate of Eligibility pursuant to federal law and applicable
3 regulations issued by the Chief of the National Guard Bureau.

4 ~~C. If the Oklahoma National Guard is in active federal service~~
5 ~~and no persons having the qualifications required in subsection B of~~
6 ~~this section are available within the state, then the Governor may~~
7 ~~appoint, subject to the advice and consent of the Senate, any~~
8 ~~suitably qualified person who at any time in the preceding ten (10)~~
9 ~~years would have been qualified, as above, and who has served at~~
10 ~~least two (2) years in active federal service in the grade of~~
11 ~~Colonel or higher.~~

12 SECTION 3. AMENDATORY 44 O.S. 2021, Section 25, is
13 amended to read as follows:

14 Section 25. A. The Adjutant General shall have the rank of
15 Major General and devote full time to the duties of the office.
16 Regardless of whether or not the Adjutant General has been
17 recognized federally at the rank of Major General at the time of
18 appointment by the Governor, the Adjutant General shall be
19 compensated at the same rate of pay afforded to a Major General
20 serving on federal Title 10 active duty with the same time in
21 service.

22 B. The Governor may appoint Assistant Adjutants General for
23 Army and Assistant Adjutants General for Air to assist the Adjutant
24 General in the discharge and performance of his or her duties. When

1 appointing Assistant Adjutants General, the Governor shall take into
2 consideration the number of such positions contemplated or
3 recommended by the National Guard Bureau for manning the joint
4 forces headquarters of a state. Such Assistant Adjutants General
5 shall have the qualifications prescribed by law for the Adjutant
6 General and shall have the rank of Brigadier General. The Assistant
7 Adjutants General appointed by the Governor shall be considered
8 staff officers and not commanders except that, in the discretion of
9 the Adjutant General, specific command or supervisory authority may
10 be delegated by the Adjutant General to an Assistant Adjutant
11 General but such delegation shall be accomplished in writing and
12 shall be considered a military publication, as defined in Section
13 801 of this title (Article 1).

14 C. Other general officers assigned to billets within the state
15 military forces, including certain billets within the joint forces
16 headquarters, shall be considered staff officers and not commanders
17 except that, in the discretion of the Adjutant General, specific
18 command or supervisory authority may be delegated by the Adjutant
19 General to such general officers, but such delegation shall be
20 accomplished in writing and shall be considered a military
21 publication, as defined in Section 801 of this title (Article 1).

22 D. The Adjutant General may employ a state employee in the
23 position of Executive Assistant and Programs Manager for the
24 Military Department of the state. Said position shall be

1 unclassified and exempt from the Oklahoma Personnel Act and the
2 Merit Rules for Employment, except leave regulations.

3 SECTION 4. AMENDATORY 44 O.S. 2021, Section 26, is
4 amended to read as follows:

5 Section 26. A. The Adjutant General shall be in control of the
6 Military Department of the State of Oklahoma, subordinate only to
7 the Governor. Within the limitations and under the provisions of
8 law, he or she shall supervise and direct the Oklahoma National
9 Guard within the service of the state and when under state control
10 in all of its organization, training and other activities; shall
11 receive and give effect to the orders of the Governor; and shall
12 perform such other military and defense duties, not otherwise
13 assigned by law, as the Governor may prescribe. The Adjutant
14 General shall have the authority to arm members of the state
15 military forces on military installations and other places under the
16 control of the Military Department with weaponry as the Adjutant
17 General deems necessary to adequately provide for the security of
18 the facilities and their occupants.

19 B. The Adjutant General, when absent from the state, may
20 temporarily delegate any authority vested under this title and any
21 such duties as an agency appointing authority to an Assistant
22 Adjutant General, other state officer or employee within the
23 Military Department of the State of Oklahoma. Such temporary
24 delegations of authority pursuant to this subsection shall be

1 accomplished in writing. The Adjutant General may also promulgate
2 regulations providing for the delegation of any such authority.

3 C. The Adjutant General shall develop, publish and maintain an
4 organizational chart depicting the chain of command between the
5 Adjutant General and the major commands of the Oklahoma National
6 Guard. Besides the major commands defined in Section 801 of this
7 title (Article 1), the Adjutant General, in his or her discretion,
8 may designate other military units within the Oklahoma National
9 Guard as major commands.

10 D. The organizational chart required in subsection C of this
11 section shall be updated no less than annually and shall include all
12 enlisted and officer billets assigned to joint forces headquarters
13 and shall depict all existing command relationships established by
14 the Adjutant General within joint forces headquarters. The
15 organizational chart required herein shall not be considered a
16 military publication within the meaning of Section 801 of this title
17 (Article 1).

18 E. In accordance with all relevant requirements of the United
19 States Army, the United States Air Force or the National Guard
20 Bureau, the Adjutant General shall develop, publish and maintain an
21 enlisted and officer rating scheme for all enlisted and officer
22 billets assigned to joint forces headquarters. The rating scheme
23 required herein shall not be considered a military publication
24 within the meaning of Section 801 of this title (Article 1).

1 F. Pursuant to the rules established by the Adjutant General,
2 the Military Department of the State of Oklahoma is authorized to
3 expend appropriated and nonappropriated funds to enhance recruiting
4 and retention efforts for the Oklahoma National Guard.

5 G. The Adjutant General may establish rules allowing the
6 Military Department of the State of Oklahoma to accept donations and
7 bequests to create a program for the benefit of members of the
8 Oklahoma National Guard.

9 H. The Adjutant General shall serve as the chief of all fire
10 protection units operating under the Oklahoma Military Department
11 and shall supervise and administer the fire protection units in
12 accordance with the rules and procedures prescribed by the Military
13 Department.

14 I. The Adjutant General shall serve as the chief of all police
15 units and officers appointed under the Oklahoma Military Department.
16 The Adjutant General may appoint police officers in accordance with
17 Section 230 of this title.

18 SECTION 5. AMENDATORY Section 1, Chapter 74, O.S.L. 2022
19 (44 O.S. Supp. 2024, Section 233.10a), is amended to read as
20 follows:

21 Section 233.10a. The Military Department of the State of
22 Oklahoma may purchase information technology including, but not
23 limited to, computer hardware or software, or any services related
24 to software development, software modifications, or any other

1 services related to the operation and maintenance of computer
2 hardware or software or both, independently and without prior
3 approval from the Office of Management and Enterprise Services
4 Information Services Division. All federal programs managed by the
5 Military Department of the State of Oklahoma shall be exempt from
6 any and all Information Services Division requirements.

7 SECTION 6. AMENDATORY 44 O.S. 2021, Section 243, is
8 amended to read as follows:

9 Section 243. A. The Governor is hereby authorized to prescribe
10 rules and regulations governing the enlistment, organization,
11 administration, equipment, discipline and discharge of the personnel
12 of such military forces; to requisition from the Secretary of
13 Defense such arms and equipment as may be in the possession of and
14 can be spared by the Department of Defense and to extend thereto the
15 facilities of state armories, Armed Forces Reserve Centers,
16 readiness centers, logistics, aviation, and training facilities,
17 warehouses and their equipment and such other state premises and
18 property as may be available for the purpose of drill and
19 instruction. ~~Insofar as applicable the procedure for the~~
20 ~~enlistment, organization, pay, maintenance, equipment and~~
21 ~~disciplining of such forces shall be in conformity with the law and~~
22 ~~the rules and regulations governing and pertaining to the National~~
23 ~~Guard; provided, that the officers and enlisted personnel in the~~
24 ~~Oklahoma State Guard shall not receive any compensation or monetary~~

1 ~~allowances from the state except when activated for state active~~
2 ~~duty, as defined in Section 801 of this title, by order of the~~
3 ~~Governor.~~

4 B. Members of the Oklahoma ~~State~~ National Guard shall be
5 considered part of state military forces as defined in Section 801
6 of this title and shall be subject to the Oklahoma Uniform Code of
7 Military Justice.

8 C. When prescribing the rules and regulations governing
9 enlistment, organization, administration, equipment, discipline and
10 discharge of the personnel of the Oklahoma ~~State~~ National Guard, the
11 Governor shall issue such rules and regulations in the form of an
12 executive order or in a series of such orders. An executive order
13 or a series of such orders prescribing the rules and regulations
14 governing enlistment, organization, administration, equipment,
15 discipline and discharge of the personnel of the Oklahoma ~~State~~
16 National Guard shall also be published by the Adjutant General as a
17 military publication.

18 SECTION 7. AMENDATORY 44 O.S. 2021, Section 815, is
19 amended to read as follows:

20 Section 815. ARTICLE 15. Commanding officer's nonjudicial
21 punishment.

22 A. Except as provided in subsection B of this section, any
23 commanding officer ~~and, for purposes of this section, any officer in~~
24 ~~charge,~~ may impose disciplinary punishments for minor offenses

1 arising under the punitive articles of the Oklahoma Uniform Code of
2 Military Justice without the intervention of a court-martial.

3 B. Any ~~superior commander~~ commanding officer may limit or
4 withhold the exercise of nonjudicial punishment authority by
5 subordinate commanders, including limiting authority over certain
6 categories of military personnel or offenses. Likewise, individual
7 cases may be reserved by a superior commander. A superior authority
8 may limit or withhold any power that a subordinate might otherwise
9 exercise under this section.

10 C. Except as provided in subsection L of this section, the
11 Governor or Adjutant General may delegate the powers established
12 under this section to a ~~senior~~ commanding officer who is a member of
13 the state military forces and is also a member of the same force
14 component as the accused.

15 D. ~~Any~~ Except as provided in subsection S of this section, any
16 commanding officer may impose upon enlisted members of the officer's
17 command:

- 18 1. An admonition;
- 19 2. A reprimand;
- 20 3. The withholding of privileges for not more than six (6)
21 months which need not be consecutive;
- 22 4. The forfeiture of pay of not more than seven (7) days' pay;
- 23 5. A fine of not more than seven (7) days' pay;
- 24

1 6. A reduction to the next inferior pay grade, if the grade
2 from which demoted is within the promotion authority of the officer
3 imposing the reduction or any officer subordinate to the one who
4 imposes the reduction;

5 7. Extra duties, including fatigue or other duties, for not
6 more than fourteen (14) days, which need not be consecutive; and

7 8. Restriction to certain specified limits, with or without
8 suspension from duty, for not more than fourteen (14) days, which
9 need not be consecutive.

10 E. ~~Any~~ Except as provided in subsection S of this section, any
11 commanding officer of the grade of major or above may impose upon
12 enlisted members of the officer's command:

13 1. An admonition;

14 2. A reprimand;

15 3. The withholding of privileges for not more than six (6)
16 months which need not be consecutive;

17 4. The forfeiture of not more than one-half (1/2) of one (1)
18 month's pay per month for two (2) months;

19 5. A fine of not more than one (1) month's pay;

20 6. A reduction to the lowest or any intermediate pay grade, if
21 the grade from which demoted is within the promotion authority of
22 the commanding officer imposing the reduction or any officer
23 subordinate to the one who imposes the reduction, but an enlisted
24

1 member in a pay grade above E-4 shall not be reduced more than two
2 pay grades;

3 7. Extra duties, including fatigue or other duties, for not
4 more than forty-five (45) days which need not be consecutive; and

5 8. Restriction to certain specified limits, with or without
6 suspension from duty, for not more than sixty (60) days which need
7 not be consecutive.

8 F. The Governor, the Adjutant General, or an officer exercising
9 general or special court-martial convening authority may impose:

10 1. Upon officers of the officer's command:

11 a. any punishment authorized in subsection E of this
12 section, except for the punishments provided in
13 paragraphs 6 and 7 of subsection E of this section,
14 and

15 b. arrest in quarters for not more than thirty (30) days
16 which need not be consecutive; and

17 2. Upon enlisted members of the officer's command, any
18 punishment authorized in subsection E of this section.

19 Admonitions or reprimands given as nonjudicial punishment to
20 commissioned officers and warrant officers shall be administered in
21 writing. In all other cases, unless otherwise prescribed by
22 regulations promulgated by the Adjutant General, such punishments
23 may be administered either orally or in writing.
24

1 G. Whenever any punishments are combined to run consecutively,
2 the total length of the combined punishment shall not exceed the
3 authorized duration of the longest punishment included in the
4 combination, and there shall be an apportionment of punishments so
5 that no single punishment in the combination exceeds its authorized
6 length under this section.

7 H. Once the ~~commander~~ commanding officer has determined that
8 nonjudicial punishment is appropriate, the ~~commander~~ commanding
9 officer shall provide reasonable notice to the member of his or her
10 intent to impose nonjudicial punishment. At the time the ~~commander~~
11 commanding officer provides notification as required in this
12 subsection, the member shall be entitled to examine all statements
13 and other evidence that the commander has examined and intends to
14 rely upon as the basis for punishment. The member shall be provided
15 a copy of the documentary evidence unless it is privileged,
16 classified, or otherwise restricted by law, regulation, or
17 instruction. At the time the ~~commander~~ commanding officer provides
18 notification as required in this subsection, the ~~commander~~
19 commanding officer shall also inform the member as to the quantum of
20 punishment potentially to be imposed. While a member undergoing
21 nonjudicial punishment is not entitled to representation by a duly
22 appointed defense counsel, the member may seek legal advice from any
23 judge advocate available for this purpose. Upon notification by the
24 officer of his or her intent to impose judicial punishment, the

1 member shall provide a response within forty-five (45) calendar
2 days.

3 I. The right to demand trial by court-martial in lieu of
4 nonjudicial punishment shall arise only when arrest in quarters or
5 restriction will be considered as punishments. If the commanding
6 officer determines that arrest in quarters or restriction will be
7 considered as punishments, prior to the offer of nonjudicial
8 punishment the ~~accused~~ member shall be notified in writing of the
9 right to demand trial by court-martial. Should the commanding
10 officer determine that the punishment options will not include
11 arrest in quarters or restriction, the ~~accused~~ member shall be
12 notified that there is no right to trial by court-martial in lieu of
13 nonjudicial punishment. Upon notification by the ~~commander or~~
14 ~~officer in charge~~ commanding officer of his or her intent to impose
15 nonjudicial punishment that includes arrest in quarters or
16 restriction, the ~~accused~~ member shall be afforded a reasonable
17 amount of time to confer with legal counsel and to prepare a
18 response.

19 J. The commanding officer who imposes the punishment, or his or
20 her successor in command, may at any time suspend, set aside,
21 mitigate or remit any part or amount of the punishment and restore
22 all rights, privileges and property affected. The commanding
23 officer may also mitigate:

24 1. Reduction in grade to forfeiture of pay;

1 2. Arrest in quarters to restriction; or

2 3. Extra duties to restriction.

3 The mitigated punishment shall not be for a greater period than
4 the punishment mitigated. When mitigating reduction in grade to
5 forfeiture of pay, the amount of the forfeiture shall not be greater
6 than the amount that could have been imposed initially under this
7 article by the officer who imposed the punishment mitigated.

8 K. A person punished under this section who considers the
9 punishment unjust or disproportionate to the offense may, through
10 his or her chain of command, appeal to a senior officer designated
11 by the Adjutant General to adjudicate appeals arising from
12 nonjudicial punishment. A senior officer so designated by the
13 Adjutant General shall be a member of the same component of the
14 state military forces as the accused. An appeal made pursuant to
15 this subsection shall be lodged within fifteen (15) days after the
16 punishment is announced to the ~~accused~~ member. The commanding
17 officer exercising appellate authority may, at his or her
18 discretion, extend the deadline for an appeal. The appeal shall be
19 promptly forwarded and decided, and the member shall not be punished
20 until the appeal is decided. The senior officer designated by the
21 Adjutant General as exercising appellate authority may exercise the
22 same powers with respect to the punishment imposed as may be
23 exercised under subsection I of this section by the officer who
24 imposed the punishment. Before acting on an appeal from a

1 punishment, the senior officer exercising appellate authority shall
2 refer the case to a judge advocate for consideration and advice.
3 When a senior officer is designated by the Adjutant General to
4 adjudicate appeals arising from nonjudicial punishment, such
5 designation shall be accomplished in writing and shall be considered
6 a military publication, as defined in Section 801 of this title
7 (Article 1).

8 L. Except for nonjudicial punishment imposed by the Governor or
9 the Adjutant General, the final appellate authority for nonjudicial
10 punishment imposed within state military forces is the Adjutant
11 General. A person punished under this section whose appeal was
12 previously denied by a senior officer designated to adjudicate
13 appeals may, through his or her chain of command, lodge an
14 additional appeal with the Adjutant General within five (5) days
15 after the appeal is denied. In the event the officer imposing
16 nonjudicial punishment is a senior officer who is also designated to
17 adjudicate appeals arising from nonjudicial punishment, an appeal
18 thereof shall be addressed directly to the Adjutant General. In the
19 event the officer imposing nonjudicial punishment is the Adjutant
20 General, an appeal thereof shall be addressed directly to the
21 Governor. An appeal offered pursuant to this subsection shall be
22 made only in writing. Neither the Governor nor the Adjutant General
23 shall delegate his or her duties as an appellate authority under
24 this subsection.

1 M. Whenever nonjudicial punishment is imposed under this
2 section:

3 1. After adjudication and while the punishment is being carried
4 out or while the adjudged punishment is pending before the appellate
5 authority, the commander or officer in charge who imposed the
6 nonjudicial punishment, upon the request of the ~~accused~~ member, may:

7 a. excuse the ~~accused~~ member from attendance at scheduled
8 unit training assemblies, or

9 b. arrange for the ~~accused~~ member to drill on alternate
10 dates and in alternate locations; or

11 2. If necessary to maintain good order and discipline within
12 the unit, the ~~commander or officer in charge~~ commanding officer who
13 imposed the nonjudicial punishment may order the ~~accused~~ member to
14 drill on alternate dates and in alternate locations. The order
15 shall be reduced to writing and shall become part of the record of
16 nonjudicial punishment.

17 N. The imposition and enforcement of disciplinary punishment
18 under this section for any act or omission shall not be a bar to
19 trial by court-martial or a civilian court of competent jurisdiction
20 for a crime or offense arising out of the same act or omission; but
21 the fact that a disciplinary punishment has been enforced may be
22 demonstrated by the ~~accused~~ member upon trial and, when so
23 demonstrated, it shall be considered in determining the measure of
24 punishment to be adjudged in the event of a finding or verdict of

1 guilty. Nonjudicial punishment shall not be imposed for an offense
2 previously tried by a civilian court unless so authorized by
3 regulations promulgated by the Adjutant General.

4 O. When nonjudicial punishment has been imposed for an offense,
5 punishment shall not again be imposed for the same offense under
6 this section. Once nonjudicial punishment has been imposed, it may
7 not be increased, upon appeal or otherwise. When a ~~commander or~~
8 ~~officer in charge~~ commanding officer determines that nonjudicial
9 punishment is appropriate for a particular member, all known
10 offenses determined to be appropriate for disposition by nonjudicial
11 punishment and ready to be considered at that time, including all
12 offenses arising from a single incident or course of conduct, shall
13 be considered together and shall not be made the basis for multiple
14 punishments. This subsection shall in no way restrict the right of
15 a ~~commander~~ commanding officer to prefer court-martial charges for
16 an offense previously punished under the provisions of this section.

17 P. In accordance with subsection B of Section 843 of this title
18 (Article 43, subsection B), a person accused of an offense is not
19 liable to be punished under this section if the offense was
20 committed more than two (2) years before the imposition of
21 punishment. Periods in which the ~~accused~~ member is absent without
22 authority shall be excluded in computing the period of limitation
23 prescribed in this section.

1 Q. Whenever a punishment of forfeiture of pay is imposed under
2 this section, the forfeiture shall not apply to pay accruing before
3 the date that punishment is imposed, but only pay accruing on or
4 after the date that punishment is imposed.

5 R. The Adjutant General may promulgate regulations prescribing
6 the type and form of records to be kept of proceedings conducted
7 pursuant to this section. The Adjutant General may promulgate any
8 other regulations necessary to carry out the provisions of this
9 section.

10 S. For purposes of this section, no member of the Oklahoma
11 National Guard of the rank of E-8 or E-9 shall be reduced in rank
12 pursuant to this section except when the reduction results from
13 nonjudicial punishment imposed by an officer of the Oklahoma
14 National Guard of the rank of Brigadier General or by the Adjutant
15 General. When imposing nonjudicial punishment on enlisted persons
16 of the rank of E-7 or below, a commander or officer in charge who
17 possesses the rank of colonel may consider reduction in rank as a
18 possible punishment.

19 SECTION 8. AMENDATORY 44 O.S. 2021, Section 821, is
20 amended to read as follows:

21 Section 821. ~~RESERVED~~ ARTICLE 21. Convening of court-martial
22 by federal officials.

23 In no case shall the President of the United States, the
24 Secretary of Defense, the secretary of a military department, a

1 military officer serving on active duty within the meaning of Title
2 10 of the United States Code, or any other federal official convene
3 a court-martial proceeding pursuant to the Oklahoma Military Code
4 unless prior consent has been granted by the Governor. Such
5 consent, if granted by the Governor, shall be accomplished in
6 writing and shall be published by the Governor.

7 SECTION 9. AMENDATORY 44 O.S. 2021, Section 875, is
8 amended to read as follows:

9 Section 875. ARTICLE 75. Restoration.

10 A. Under such regulations as the Adjutant General may
11 promulgate, all rights, privileges, and property affected by an
12 executed part of a court-martial sentence which has been set aside
13 or disapproved, except an executed dismissal or discharge, shall be
14 restored unless a new trial or rehearing is ordered and such
15 executed part is included in a sentence imposed upon the new trial
16 or rehearing.

17 B. If a previously executed sentence of dishonorable or bad-
18 conduct discharge is not imposed on a new trial, the Adjutant
19 General shall substitute therefor a form of discharge authorized for
20 administrative issuance unless the accused is to serve out the
21 remainder of his or her enlistment.

22 C. If a previously executed sentence of dismissal is not
23 imposed on a new trial, the Adjutant General shall substitute
24 therefor a form of discharge authorized for administrative issue,

1 and the commissioned officer dismissed by that sentence may be
2 reappointed ~~pursuant to Sections 875 and 12203 of Title 10 of the~~
3 ~~United States Code and any applicable regulations prescribed~~
4 ~~thereunder by the President of the United States or the Secretary~~
5 ~~concerned~~ solely by the Governor to such commissioned grade and with
6 such rank as in the opinion of the Governor that former officer
7 would have attained had he or she not been dismissed. The
8 reappointment of such a former officer shall be without regard to
9 the existence of a vacancy and shall affect the promotion status of
10 other officers only insofar as the Governor may direct. All time
11 between the dismissal and the reappointment shall be considered as
12 actual service for all purposes, including the right to pay and
13 allowances.

14 D. The Governor or Adjutant General shall prescribe
15 regulations, with such limitations as the Governor or Adjutant
16 General considers appropriate, governing eligibility for pay and
17 allowances for the period after the date on which an executed part
18 of a court-martial sentence is set aside.

19 SECTION 10. AMENDATORY 44 O.S. 2021, Section 905, is
20 amended to read as follows:

21 Section 905. ~~RESERVED~~ ARTICLE 105. Forgery.

22 Any person subject to the Oklahoma Uniform Code of Military
23 Justice who, with intent to defraud:
24

1 1. Falsely makes or alters any signature to, or any part of,
2 any writing which would, if genuine, apparently impose a legal
3 liability on another or change his or her legal right or liability
4 to his or her prejudice; or

5 2. Utters, offers, issues, or transfers such a writing, known
6 by him or her to be so made or altered, is guilty of forgery and
7 shall be punished as a court-martial may direct.

8 SECTION 11. AMENDATORY 44 O.S. 2021, Section 912, is
9 amended to read as follows:

10 Section 912. ARTICLE 112. Drunkenness and other incapacitation
11 offenses.

12 A. Drunk on duty. Any person subject to the Oklahoma Uniform
13 Code of Military Justice, ~~other than a sentinel or lookout,~~ who is
14 drunk on duty shall be punished as a court-martial may direct.

15 B. Incapacitation for duty from drunkenness or drug use. Any
16 person subject to the Code who, as a result of indulgence in any
17 alcoholic beverage or any drug, is incapacitated for the proper
18 performance of duty shall be punished as a court-martial may direct.

19 C. Drunk prisoner. Any person subject to the Code who is a
20 prisoner and, while in such status, is drunk shall be punished as a
21 court-martial may direct.

22 SECTION 12. AMENDATORY 44 O.S. 2021, Section 912a, is
23 amended to read as follows:

1 Section 912a. ARTICLE 112A. Wrongful use, possession, etc., of
2 controlled substances.

3 A. Any person subject to the Oklahoma Uniform Code of Military
4 Justice who wrongfully uses, possesses, manufactures, distributes,
5 imports into the customs territory of the United States, exports
6 from the United States, or introduces into an installation, vessel,
7 vehicle, or aircraft used by or under the control of the Armed
8 Forces of the United States or of the state military forces a
9 substance described in subsection B of this section shall be
10 punished as a court-martial may direct.

11 B. The substances referred to in subsection A of this section
12 are the following:

13 1. Opium, heroin, cocaine, amphetamine, lysergic acid
14 diethylamide, methamphetamine, phencyclidine, barbituric acid, and
15 marijuana and any compound or derivative of any such substance;

16 2. Any substance not specified in paragraph 1 of this
17 subsection that is listed on a schedule of controlled substances
18 prescribed by the President for the purposes of the Uniform Code of
19 Military Justice, Title 10 of the United States Code, Section 801,
20 et seq.; and

21 3. Any other substance not specified in paragraph 1 of this
22 subsection or contained on a list prescribed by the President under
23 paragraph 2 of this subsection that is listed in schedules I through
24

1 V of article 202 of the Controlled Substances Act, Title 21 of the
2 United States Code, Section 812.

3 C. It shall be unlawful for any member of the state military
4 forces to knowingly use or ingest marijuana or any substances or
5 products derived from marijuana including, but not limited to, hemp,
6 tetrahydrocannabinol, and cannabidiol.

7 SECTION 13. AMENDATORY 44 O.S. 2021, Section 928b, is
8 amended to read as follows:

9 Section 928b. ~~RESERVED~~ Any person subject to the Oklahoma
10 Uniform Code of Military Justice who:

11 1. Commits a violent offense against a spouse, an intimate
12 partner, or an immediate family member of that person;

13 2. With intent to threaten or intimidate a spouse, an intimate
14 partner, or an immediate family member of that person, commits an
15 offense under this chapter against any person or property, including
16 an animal;

17 3. With intent to threaten or intimidate a spouse, an intimate
18 partner, or an immediate family member of that person, violates a
19 protection order;

20 4. With intent to commit a violent offense against a spouse, an
21 intimate partner, or an immediate family member of that person,
22 violates a protection order; or

23

24

1 5. Assaults a spouse, an intimate partner, or an immediate
2 family member of that person by strangling or suffocating, shall be
3 punished as a court-martial may direct.

4 SECTION 14. AMENDATORY 44 O.S. 2021, Section 934, is
5 amended to read as follows:

6 Section 934. ARTICLE 134. General article.

7 Though not specifically mentioned in the Oklahoma Uniform Code
8 of Military Justice, all disorders and neglects to the prejudice of
9 good order and discipline in the state military forces, all conduct
10 of a nature to bring discredit upon the state military forces, and
11 crimes and offenses not capital, of which persons subject to the
12 Code may be guilty, shall be taken cognizance of by a general,
13 special, or summary court-martial, according to the nature and
14 degree of the offense, and shall be punished at the discretion of
15 that court. However, where a crime constitutes an offense that
16 violates both the Code and the criminal laws of the State of
17 Oklahoma, jurisdiction over the offense shall be determined in
18 accordance with Section 802 of this title (Article 2). This section
19 shall encompass all specifically enumerated offenses included in
20 Section 934 of Title 10 of the United States Code, including all
21 amendments thereto adopted from time to time, except when such
22 provisions are contrary to or inconsistent with the United States
23 Code.

1 SECTION 15. AMENDATORY 44 O.S. 2021, Section 937, is
2 amended to read as follows:

3 Section 937. ARTICLE 137. Articles to be explained.

4 A. 1. The sections of the Oklahoma Uniform Code of Military
5 Justice specified in paragraph 3 of this subsection shall be
6 carefully explained, either orally or in writing, to each officer
7 and enlisted member at the time of, or within one hundred twenty
8 (120) days after, the officer's or enlisted member's initial
9 entrance into a duty status with the state military forces.

10 2. Such articles shall be explained again:

11 a. after the enlisted member has completed basic or
12 recruit training, and

13 b. ~~at the time when the enlisted member reenlists~~ within
14 ninety (90) days of each re-enlistment.

15 3. This subsection applies with respect to Sections 802, 803,
16 807-815, 825, 827, 831, 837, 838, 855, 877-934, and 937-939 of this
17 title (Articles 2, 3, 7-15, 25, 27, 31, 37, 38, 55, 77-134, and 137-
18 139).

19 B. The text of the Code and of the regulations prescribed
20 pursuant to the Code shall be made available to an officer or
21 enlisted member of the state military forces, upon request, for the
22 officer's or enlisted member's personal examination. Electronic or
23 online availability of the Code and of the regulations prescribed
24 pursuant to the Code shall constitute availability for purposes of

1 personal examination by officers or enlisted members of the state
2 military forces.

3 SECTION 16. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 940C of Title 44, unless there
5 is created a duplication in numbering, reads as follows:

6 ARTICLE 140C. Manual for Courts-Martial.

7 The Manual for Courts-Martial, United States, including all
8 amendments thereto adopted from time to time, except when such rules
9 are contrary to or inconsistent with the Oklahoma Uniform Code of
10 Military Justice, shall be adopted as the Oklahoma State Manual for
11 Courts-Martial.

12 SECTION 17. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 239 of Title 44, unless there is
14 created a duplication in numbering, reads as follows:

15 The co-located readiness and joint operating center facilities
16 constructed by the Military Department or on behalf of the Military
17 Department shall be named the "Benjamin T. Walkingstick National
18 Guard Complex".

19 SECTION 18. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 14-140 of Title 70, unless there
21 is created a duplication in numbering, reads as follows:

22 A. This act shall be known and may be cited as the "Oklahoma
23 National Guard CareerTech Assistance Act".

24 B. As used in this act:

1 1. "Technology center school" means a technology center school
2 under the governance of the State Board of Career and Technology
3 Education;

4 2. "Eligible Guard member" means a current member of the
5 Oklahoma National Guard in good standing who has a high school
6 diploma or who has completed General Educational Development (GED)
7 requirements and who has enrolled in a technology center school; and

8 3. "Program" means the Oklahoma National Guard CareerTech
9 Assistance Program established pursuant to the provisions of this
10 section.

11 C. 1. There is hereby created the Oklahoma National Guard
12 CareerTech Assistance Program to provide assistance to eligible
13 Guard members who enroll in a technology center school. Subject to
14 the availability of funds, the amount of assistance shall be
15 equivalent to the amount of tuition for a career and technology
16 program in which the eligible Guard member is enrolled leading to
17 certification or licensure, not to exceed a maximum of three (3)
18 years.

19 2. Assistance provided pursuant to this section shall be
20 granted without any limitation other than the amount of funds
21 available for the program and the number of eligible Guard members
22 who apply, subject to any cap established by the Military Department
23 of the State of Oklahoma.
24

1 3. Assistance allowed by this section shall not be allowed for
2 courses taken in excess of the requirements for completion of a
3 technology center school program leading to certification or
4 licensure.

5 D. Assistance provided pursuant to this section shall be
6 allocated to the technology center school from the Oklahoma National
7 Guard CareerTech Assistance Revolving Fund created pursuant to
8 Section 2 of this act.

9 E. To be eligible to apply for the program, an eligible Guard
10 member shall:

11 1. Have at least one (1) year remaining on his or her
12 enlistment contract at the beginning of any semester for which the
13 member applies for assistance pursuant to this section;

14 2. Agree in writing to complete his or her current service
15 obligation in the Oklahoma National Guard; and

16 3. Agree in writing to serve actively in good standing with the
17 Oklahoma National Guard for not less than twenty-four (24) months
18 after completion of the last semester for which the member receives
19 assistance pursuant to this section.

20 F. To retain eligibility for the program, an eligible Guard
21 member shall:

22 1. Maintain good academic standing and satisfactory progress
23 according to standards of the technology center school in which the
24 member is enrolled;

1 2. Maintain the requirements for retention and completion as
2 established by the technology center school in which the member is
3 enrolled;

4 3. Maintain a minimum grade point of average of 2.0 on a 4.0
5 scale;

6 4. Maintain satisfactory participation in the Oklahoma National
7 Guard; and

8 5. Possess a Military Occupational Specialty (MOS) or Air Force
9 Specialty Code (AFSC) after his or her first semester.

10 G. An eligible Guard member seeking assistance pursuant to the
11 provisions of this section shall submit an application on a form
12 prescribed by the Military Department of the State of Oklahoma to
13 the Educational Service Office of the Military Department prior to
14 the semester for which assistance is sought. The eligible Guard
15 member's Commander or his or her designee shall confirm a member's
16 standing and eligibility to the technology center school in which
17 the student is enrolled. The Military Department may establish a
18 cap on the number of eligible Guard members allowed to participate
19 per semester per technology center school program.

20 H. The eligible Guard member's Commander may deny an
21 application submitted by an eligible Guard member for continued
22 program assistance if he or she fails to comply with the provisions
23 of paragraph 1, 2, 3, 4, or 5 of subsection F of this section.
24

1 I. An eligible Guard member who has received program assistance
2 pursuant to the provisions of this section and who fails to comply
3 with the provisions of paragraph 4 of subsection F of this section
4 shall be required to repay an amount to be calculated as follows:

5 1. Determine the total amount of assistance provided pursuant
6 to the provisions of this section;

7 2. Divide the amount determined in paragraph 1 of this
8 subsection by twenty-four (24); and

9 3. Multiply the amount determined in paragraph 2 of this
10 subsection by the number of months the member did not fulfill the
11 requirements of paragraph 4 of subsection F of this section.

12 Repayments shall be deposited into the Oklahoma National Guard
13 CareerTech Assistance Revolving Fund created pursuant to Section 2
14 of this act.

15 J. An eligible Guard member who has received program assistance
16 pursuant to the provisions of this section and who fails to comply
17 with the provisions of paragraph 4 of subsection F of this section
18 due to hardship circumstances may request a waiver from repayment.
19 A waiver request shall be submitted in writing to the Adjutant
20 General.

21 K. By July 1 annually, the State Board of Career and Technology
22 Education shall notify the Adjutant General of the amount of funding
23 available in the Oklahoma National Guard CareerTech Assistance
24 Revolving Fund created pursuant to Section 2 of this act.

1 L. The State Board of Career and Technology Education shall
2 promulgate rules to implement the provisions of this act, including
3 deadlines for submission of applications required by subsection G of
4 this section. The Military Department of the State of Oklahoma
5 shall promulgate regulations pertaining to the application process
6 and the determination of eligibility for the program. The Board and
7 the Department shall coordinate the promulgation of rules and
8 regulations, respectively. The Adjutant General may promulgate
9 regulations to implement the provisions of this act.

10 SECTION 19. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 14-140.1 of Title 44, unless
12 there is created a duplication in numbering, reads as follows:

13 A. Subject to the provisions of this section, the Adjutant
14 General may permit a qualifying member described in Section 18 of
15 this act who is entitled to education assistance under this act to
16 elect to transfer to one or more of the dependents specified in
17 subsection C a portion of such individual's entitlement to such
18 assistance, subject to the limitation under subsection D.

19 B. An individual referred to in subsection A is any member of
20 the uniformed services who, at the time of the approval of the
21 individual's request to transfer entitlement to educational
22 assistance under this section, has completed at least:
23
24

1 1. Six (6) years of service in the Oklahoma National Guard and
2 enters into an agreement to serve at least four (4) more years as a
3 member of the uniformed services; or

4 2. The years of service as determined in regulations pursuant
5 to subsection J of this section.

6 C. Eligible dependents.

7 1. An individual approved to transfer an entitlement to
8 educational assistance under this section may transfer the
9 individual's entitlement to an eligible dependent or a combination
10 of eligible dependents.

11 2. For purposes of this subsection, the term "eligible
12 dependent" has the meaning given the term "dependent" under
13 subparagraphs A, D, and I of Section 1072(2) of Title 10 of the
14 United States Code.

15 D. Limitation of months of transfer - the total number of
16 months of entitlement transferred by an individual under this
17 section may not exceed thirty-six (36) months. The Adjutant General
18 may prescribe regulations that would limit the months of entitlement
19 that may be transferred under this section to no less than eighteen
20 (18) months.

21 E. Designation of transferee - an individual transferring an
22 entitlement to education assistance under this section shall:

23 1. Designate the dependent or dependents to whom such
24 entitlement is being transferred; and

1 2. Designate the number of months of such entitlement to be
2 transferred to such dependent.

3 F. Time for transfer; revocation and modification:

4 1. Subject to the time limitation for use of entitlement under
5 this act, and except as provided in subsection K or L, an individual
6 approved to transfer entitlement to educational assistance under
7 this section may transfer such entitlement only while serving as a
8 member of the Oklahoma National Guard when the transfer is executed.

9 2. An individual transferring entitlement under this section
10 may modify or revoke at any time the transfer of any unused portion
11 of the entitlement so transferred. The modification or revocation
12 of the transfer of entitlement under this subsection shall be made
13 by the submittal of written notice of the action to the Adjutant
14 General and Governor.

15 3. Entitlement transferred under this section may not be
16 treated as marital property, or the asset of a marital estate,
17 subject to division in a divorce or other civil proceeding.

18 G. A dependent to whom entitlement to educational assistance is
19 transferred under this section may not commence the use of the
20 transferred entitlement until:

21 1. In the case of entitlement transferred to a spouse, the
22 completion by the individual making the transfer of at least:

23 a. six (6) years of service in the National Guard, or
24

- 1 b. the years of service as determined in regulations
2 pursuant to subsection J of this Section; or
- 3 2. In the case of entitlement transferred to a child, both:
- 4 a. the completion by the individual making the transfer
5 of at least:
- 6 (1) six (6) years of service in the National Guard,
7 or
8 (2) the years of service as determined in regulations
9 pursuant to subsection J of this section, or
- 10 b. either:
- 11 (1) the completion by the child of the requirements
12 of a secondary school diploma (or equivalency
13 certificate), or
14 (2) the attainment by the child of eighteen (18)
15 years of age.

16 H. Additional Administrative Matters.

17 1. The use of any entitlement to educational assistance
18 transferred under this section shall be charged against the
19 entitlement of the individual making the transfer at the rate of one
20 (1) month for each month of transferred entitlement that is used.

21 2. Except as provided under paragraph 2 of subsection E of this
22 section and subject to paragraphs 5 and 6 of this section:

- 23 a. in the case of entitlement transferred to a spouse
24 under this section, the spouse is entitled to

1 educational assistance under this chapter in the same
2 manner as the individual from whom the entitlement was
3 transferred as if the individual were not on active
4 duty,

- 5 b. in the case of entitlement transferred to a child
6 under this section, the child is entitled to
7 educational assistance under this act in the same
8 manner as the individual from whom the entitlement was
9 transferred as if the individual were not on active
10 duty,

11 3. The monthly rate of education assistance payable to a
12 dependent to whom entitlement referred to in paragraph 2 is
13 transferred under this section shall be payable:

- 14 a. in the case of a spouse, at the same rate as such
15 entitlement would otherwise be payable under this
16 chapter to the individual making the transfer as if
17 the individual were not on active duty, and
18 b. in the case of a child, at the same rate as such
19 entitlement would otherwise be payable under this
20 chapter to the individual making the transfer as if
21 the individual were not on active duty.

22 4. Death of transferor: The death of an individual
23 transferring an entitlement under this section shall not affect the
24

1 use of the entitlement by the dependent to whom the entitlement is
2 transferred.

3 a. Death prior to transfer to designated transferees: In
4 the case of an eligible individual whom the Adjutant
5 General has approved to transfer the individual's
6 entitlement under this section who, at the time of
7 death, is entitled to educational assistance under
8 this chapter and has designated a transferee or
9 transferees under subsection E but has not transferred
10 all of such entitlement to such transferee or
11 transferees, the Adjutant General shall transfer the
12 entitlement of the individual under this section by
13 evenly distributing the amount of such entitlement
14 between all such transferees who would not be
15 precluded from using some or all of the transferred
16 benefits due to the expiration of time limitations
17 found in paragraph 5 of this subsection
18 notwithstanding the limitations under subsection F.

19 b. If a transferee cannot use all of the transferred
20 benefits under subparagraph a of this subsection
21 because of expiration of a time limitation, the unused
22 benefits will be distributed among the other
23 designated transferees who would not be precluded from
24 using some or all of the transferred benefits due to

1 expiration of time limitations found in paragraph 5 of
2 this subsection, unless or until there are no
3 transferees who would not be precluded from using the
4 transferred benefits because of expiration of a time
5 limitation.

6 5. Limitation on age of use by child transferees.

7 a. In general. A child to whom entitlement is
8 transferred under this section may use the benefits
9 transferred without regard to the fifteen-year
10 delimiting date specified in this act, but may not,
11 except as provided in subparagraph b or c, use any
12 benefits so transferred after attaining the age of
13 twenty-six (26) years.

14 b. Primary caregivers of seriously injured members of the
15 armed forces and veterans.

16 (1) In general. Subject to division (2), in the case
17 of a child who, before attaining the age of
18 twenty-six (26) years, is prevented from pursuing
19 a chosen program of education by reason of acting
20 as the primary provider of personal care services
21 for a veteran or member of the Oklahoma National
22 Guard, the child may use the benefits beginning
23 on the date specified in division (3) for a
24 period whose length is specified in division (4).

1 (2) Inapplicability for revocation.

2 Division (1) shall not apply with respect to the period of an
3 individual as a primary provider of personal care services if the
4 period concludes with the revocation of the individual's designation
5 as such a primary provider.

6 (3) Date for commencement of use. The date specified
7 in this division for the beginning of the use of
8 benefits by a child under division (1) is the
9 later of

10 (a) the date on which the child ceases acting as
11 the primary provider of personal care
12 services for the veteran or member concerned
13 as described in division (1),

14 (b) the date on which it is reasonably feasible,
15 as determined under regulations prescribed
16 by the Adjutant General, for the child to
17 initiate or resume the use of benefits, or

18 (c) the date on which the child attains the age
19 of twenty-six (26) years.

20 4. Length of use. The length of the period specified in this
21 subparagraph for the use of benefits by a child under division (1)
22 is the length equal to the length of the period that:

23 a. begins on the date on which the child begins acting as
24 the primary provider of personal care services for the

1 veteran or member concerned as described in division
2 (1), and

3 b. ends on the later of:

4 (1) the date on which the child ceases acting as the
5 primary provider of personal care services for
6 the veteran or member as described in division
7 (1), or

8 (2) the date on which it is reasonably feasible, as
9 so determined, for the child to initiate or
10 resume the use of benefits; or

11 c. In any case in which the Adjutant General determines
12 that an individual to whom entitlement is transferred
13 under this section has been prevented from pursuing
14 the individual's chosen program of education before
15 the individual attains the age of twenty-six (26)
16 years because the educational institution or training
17 established closed (temporarily or permanently) under
18 an established policy based on an executive order of
19 the Governor or due to an emergency situation, the
20 Adjutant General shall extend the period during which
21 the individual may use such entitlement for a period
22 equal to the number of months that the individual was
23 so prevented from pursuing the program of education,
24 as determined by the Adjutant General.

1 6. The purposes for which a dependent to whom entitlement is
2 transferred under this section may use such entitlement shall
3 include the pursuit and completion of the requirements of a
4 secondary school diploma (or equivalency certificate).

5 7. The administrative provisions of this act shall apply to the
6 use of entitlement transferred under this section, except that the
7 dependent to whom the entitlement is transferred shall be treated as
8 the eligible individual for purposes of such provisions.

9 I. Overpayment.

10 1. Subject to paragraph 2, in the event of an overpayment of
11 educational assistance with respect to a dependent to whom
12 entitlement is transferred under this section, the dependent and the
13 individual making the transfer shall be jointly and severally liable
14 to the State of Oklahoma for the amount of the overpayment.

15 2. Failure to complete service agreement.

16 a. Except as provided in subparagraph b, if an individual
17 transferring entitlement under this section fails to
18 complete the service agreed to by the individual under
19 division (1) of subsection b in accordance with the
20 terms of the agreement of the individual under that
21 subsection, the amount of any transferred entitlement
22 under this section that is used by a dependent of the
23 individual as of the date of such failure shall be
24 treated as an overpayment of educational assistance

1 for which the individual shall be solely liable to the
2 State of Oklahoma for the amount of the overpayment
3 for purpose of this act in the case of an individual
4 who fails to complete service agreed to by the
5 individual:

6 (1) by reason of death of the individual, or

7 (2) for a reason referred to in this act.

8 J. Regulations.

9 1. The Adjutant General shall prescribe regulations for
10 purposes of this section.

11 2. Such regulations shall specify:

12 a. the manner of authorizing the transfer of entitlements
13 under this section,

14 b. the eligibility criteria in accordance with subsection
15 B, and

16 c. the manner and effect of an election to modify or
17 revoke a transfer of entitlement under paragraph 2 of
18 subsection F.

19 3. The Adjutant General may not prescribe any regulation that
20 would provide for a limitation on eligibility to transfer unused
21 education benefits to family members based on a maximum number of
22 years in the Oklahoma National Guard.

23 K. In the case of a dependent to whom entitlement to
24 educational assistance is transferred under this section who dies

1 before using all of such entitlement, the individual who transferred
2 the entitlement to the dependent may transfer any remaining
3 entitlement to a different eligible dependent, notwithstanding
4 whether the individual is serving as a member of the Armed Forces
5 when such transfer is executed.

6 L. In the case of an individual who transfers entitlement to
7 educational assistance under this section who dies before the
8 dependent to whom entitlement to educational assistance is so
9 transferred has used all of such entitlement, such dependent may
10 transfer such entitlement to another eligible dependent in
11 accordance with the provisions of this section.

12 SECTION 20. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 14-141 of Title 70, unless there
14 is created a duplication in numbering, reads as follows:

15 There is hereby created in the State Treasury a revolving fund
16 for the State Board of Career and Technology Education to be
17 designated the "Oklahoma National Guard CareerTech Assistance
18 Revolving Fund". The fund shall be a continuing fund, not subject
19 to fiscal year limitations, and shall consist of all monies received
20 by the State Board of Career and Technology Education from state
21 appropriations provided for the purpose of implementing the
22 provisions of Section 19 of this act. All monies accruing to the
23 credit of the fund are hereby appropriated and may be budgeted and
24 expended by the State Board of Career and Technology Education for

1 the purpose of providing assistance to eligible Guard members
2 pursuant to the provisions of Section 19 of this act. Expenditures
3 from the fund shall be made upon warrants issued by the State
4 Treasurer against claims filed as prescribed by law with the
5 Director of the Office of Management and Enterprise Services for
6 approval and payment.

7 SECTION 21. REPEALER 44 O.S. 2021, Section 940b, is
8 hereby repealed.

9 SECTION 22. This act shall become effective November 1, 2025.

10 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS
11 April 16, 2025 - DO PASS
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